

DISSENTING OPINION OF SIR CECIL HURST.

I am unable to agree with the decision of the Court on the Belgian counter-claim.

The first submission of that counter-claim relates to the Borgharen barrage. I am not able to regard the construction of this barrage by the Netherlands Government otherwise than as a violation of the Treaty of 1863.

Article IV of the Treaty provided that a certain quantity of water was to be withdrawn by the new intake constructed under the provisions of Article I. The quantity varied according to the level of the river. When the level of the water in the river stood at or below a certain point on the gauge at the bridge at Maestricht, the ten cubic metres per second was to be reduced to $7\frac{1}{2}$ cubic metres, or to 6 cubic metres, according to the season of the year.

The level of the Meuse so fixed as the determining factor in deciding whether the larger or the smaller quantity of water was to be withdrawn from the Meuse is stated in the Treaty itself (Art. IV, para. 2) to correspond to a minimum depth of water between Maestricht and Venlo. This shows that the purpose which the Treaty had in view was that the quantity of water to be withdrawn from the Meuse should depend on the depth of water in the sections of the river below Maestricht. It is therefore permissible to draw the deduction that the intention of the framers of the Treaty was that the maximum of ten cubic metres per second should only be withdrawn from the river when there was a certain depth of water in the river below Maestricht and down to Venlo.

The effect of the construction of the Borgharen barrage is twofold:—firstly, the level of the water at the mouth of the intake and at the bridge at Maestricht stands permanently so high that the ten cubic metres per second is at all times being withdrawn by the new intake; secondly, the level of the water at the gauge at the bridge at Maestricht has ceased to correspond with a particular depth of water in the Meuse between Maestricht and Venlo. The depth of water in the river between Maestricht and Venlo has in fact ceased to be the factor upon which depended ultimately the amount of water to be withdrawn from the Meuse under the Treaty of 1863.

The Treaty does not make express mention of the fact, but it seems clear that this provision as to the depth of water in

the river between Maestricht and Venlo had reference to the interests of navigation. It was only in connection with navigation that the depth of water in the river between Maestricht and Venlo was of importance.

The action of the Netherlands Government in constructing the Borgharen barrage has had the effect of excluding altogether the application of a provision in the Treaty which must be regarded as having been intended to safeguard the interests of navigation on the Meuse between Maestricht and Venlo. Such action is incompatible with the Treaty, and for that reason the first submission in the Belgian counter-claim should be admitted.

The provision in the second paragraph of Article V enabling the Netherlands Government to increase its share of the water withdrawn from the Meuse at Maestricht affords no justification for the construction of the Borgharen barrage. There is nothing to show that it was with a view to the exercise of its rights under that Article that the barrage was constructed.

The second submission in the Belgian counter-claim relates to the Juliana Canal.

It is to the effect that the canal being a canal below Maestricht within the meaning of Article I of the Treaty is subject as regards the supply of water to it to the same provisions as the canals on the left bank.

From the wording of the second and third submissions in the Reply of the Netherlands Government, one may infer that it is not disputed by that Government that the Juliana Canal is a canal below Maestricht within the meaning of that Article. It is merely submitted that the canal is not as regards its water supply subject to the same provisions as the canals on the left bank, and that the feeding of the canal is not and has not been inconsistent with the Treaty of 1863, as also that the mere fact that it would be possible for the Netherlands to use certain locks on this canal in a manner inconsistent with the Treaty does not in itself involve a breach of the Treaty.

The questions how the Juliana Canal has been supplied with water in the past and how it is being supplied at present are questions of fact. If it is maintained on behalf of the Belgian Government that the Juliana Canal has been and is being supplied with water from the Meuse in breach of the Treaty of 1863, the burden of proof lies on that Government. No sufficient evidence has been submitted on behalf of the Belgian Government that the Juliana Canal is or has been fed with water from the Meuse. On the contrary the evidence submitted by the Netherlands Government shows that it was not with Meuse water that the Juliana Canal was gradually filled as soon as its construction was completed, and that it is not fed with water

from the Meuse at present. A finding to that effect would in my opinion have been sufficient to dispose of the case as regards the Juliana Canal, and to justify the rejection of the Belgian submission. The question whether or not the Juliana Canal is a canal below Maestricht within the meaning of Article I need not in that case have been considered.

The judgment of the Court proceeds upon the basis that, as the new intake constructed in accordance with Article I of the Treaty was situated on the left bank of the river, and therefore cannot have been intended to feed canals on the right bank, canals on the right bank cannot come under the régime of water supply instituted by the Treaty.

There is no doubt that in 1863 the canals situated below Maestricht were all situated on the left bank of the river, and there is nothing to show that at that date any such canal as the Juliana Canal had been thought of. It does not follow, however, that it was the intention of the Treaty that the prohibition contained in Article I of the Treaty was not intended to apply to a canal on the right bank.

The Treaty was certainly intended to introduce a limitation on the withdrawal of water from the Meuse for feeding canals. In 1863 navigation on the river below Maestricht was of importance, and such navigation was bound to suffer if the withdrawals of water were excessive. Despite the fact therefore that the new intake was situated on the left bank, and that the canals as to which difficulties had arisen before 1863 were also situated on the left bank, there can be no sufficient reason for reading into the Treaty of 1863 a supposed intention to restrict its operation to the left bank if the plain language of the text is broad enough to cover canals on the right bank.

The phrase used in Article I "*pour tous les canaux situés en aval de cette ville*" is quite general: it covers canals on the right bank as much as canals on the left bank, and it is in that sense in my view that it must be interpreted.

It is unnecessary to attempt a precise definition of the term "*en aval de Maestricht*". The Parties are in agreement that the prohibition in Article I extended not only to canals which existed in 1863, but to canals which might be constructed at a later date. Though they were not agreed as to the exact meaning of the term, it is impossible to conceive any interpretation of the term which would not cover a great waterway such as the Juliana Canal, which is in direct connection with the Meuse and is situated only a few kilometres below Maestricht.

For these reasons, the Juliana Canal would in my opinion fall within the prohibition prescribed by Article I of the Treaty if it was fed with water from the Meuse. It is merely because of lack of proof as to this point that the Belgian submission should be rejected.

(Signed) CECIL J. B. HURST.